

THE UNIVERSAL HOUSE OF JUSTICE

1995-04-27

To an individual bahá'í

dear bahá'í friend,

your email of 19 february 1995 addressed to the research department

which appear in a book you have recently read, and which seem from the context to be citations from Shoghi effendi. These phrases are "bahá'í

theocracy" and "humanity will emerge from that immature civilization in

which church and state are separate." you ask whether these references can

be authenticated and dated. we have been instructed to send you the fol-

lowing reply.

A reference to "bahá'í theocracy" is to be found in a letter written on

behalf of the guardian to an individual bahá'í on 30 September 1949. This

reads as follows:

he thinks your question is well put: what the guardian was re-

ferring to was the theocratic systems, such as the catholic church

and the caliphate, which are not divinely given as systems, but man-

made, and yet, being partly derived from the teachings of christ and

200-3. pup , p. 174.200.13

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message from The Universal House of Justice

28 Muhammad are in a sense theocracies. The bahá'í theocracy, on the

contrary, is both divinely ordained as a system and, of course, based

on the teachings of the prophet himself.

The other passage does not comprise words of Shoghi effendi, although

its purport was approved by him. As you yourself have since discovered, it can be found in The Bahá'í World, volume vi, on page 199, in a state-

ment entitled "concerning membership in Non-bahá'í religious organiza-

tions," about which the guardian's secretary had written on his behalf on

11 december 1935: "The guardian has carefully read the copy of the statement you had recently prepared concerning nonmembership in non-bahá'í religious organizations, and is pleased to realize that your comments and explanations are in full conformity with his views on the subject."

The complete paragraph in which the words appear is as follows:

in the light of these words,

201-1 it seems fully evident that the way to

approach this instruction is in realizing the faith of bahá'u'lláh as an

ever-growing organism destined to become something new and greater than any of the revealed religions of the past. whereas former faiths

inspired hearts and illumined souls, they eventuated in formal religions with an ecclesiastical organization, creeds, rituals and churches,

while the faith of bahá'u'lláh, likewise renewing man's spiritual life,

will gradually produce the institutions of an ordered society, fulfill-

ing not merely the function of the churches of the past but also the function of the civil state. by this manifestation of the divine will

in a higher degree than in former ages, humanity will emerge from that immature civilization in which church and state are separate and competitive institutions, and partake of a true civilization in which

spiritual and social principles are at last reconciled as two aspects of

one and the same Truth.

201-1. reference to a letter of 15 june 1935 from Shoghi effendi, published in the united States Bahá'í News, no. 95, october 1935, p. 2, and in Messages to America:

Selected Letters and Cablegrams Addressed to the Bahá'ís of North America, 1932-1946

(Wilmette: bahá'í publishing committee, 1947), pp. 4-5. The referenced text can

also be found in Tdh, no. 16.201.3

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29you also ask how these statements could be reconciled with Shoghi effendi's comment on page 149 of Bahá'í Administration, which appears to anticipate "a future that is sure to witness the formal and complete separation of church and State," and with the following words in his letter of 21 march 1932 addressed to the bahá'ís of the united States and canada:

Theirs is not the purpose, while endeavoring to conduct and per-

fect the administrative affairs of their faith, to violate, under any circumstances, the provisions of their country's constitution, much less to allow the machinery of their administration to supersede the government of their respective countries.

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A careful reading of the letter dated 6 december 1928 in which the guardian's comment about the separation of church and State occurs would suggest that, rather than enunciating a general principle, Shoghi effendi is simply reviewing "the quickening forces of internal reform" that had "recently transpired throughout the Near and middle east," and enumerating a number of factors that impinge on the development of the faith in those parts of the world.201-3

As for the statement made by Shoghi effendi in his letter of 21 march 1932, the well-established principles of the faith concerning the relationship of the bahá'í institutions to those of the country in which the bahá'ís reside make it unthinkable that they would ever purpose to violate a country's constitution or so to meddle in its political machinery as to attempt to take over the powers of government. This is an integral element of the bahá'í principle of abstention from involvement in politics. however, this does not by any means imply that the country itself may not, by constitutional means, decide to adopt bahá'í laws and practices and modify its constitution or method of government accordingly. The relationship between the principle of abstention from involvement in politics and the emergence of the bahá'í State is commented on later in this letter. in the meantime we can quote the following extracts from letters written on behalf of the guardian in response to queries from individual believers, which indicate that the relationship is an evolving one:

201-2. wob, p. 66.

201-3. bA, p. 147 .201.5

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m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

0regarding the question raised in your letter, Shoghi effendi be-

believes that for the present the movement, whether in the east or the west, should be dissociated entirely from politics. This was the explicit injunction of ‘Abdu’l-b ahá. . . . eventually, however, as you have rightly conceived it, the movement will, as soon as it is fully developed and recognized, embrace both religious and political issues. in fact bahá’u’lláh clearly states that affairs of state as well as religious questions are to be referred to the houses of justice into which the Assemblies of the b ahá’ís will eventually evolve.

(0 November 190)

The b ahá’ís will be called upon to assume the reins of government when they will come to constitute the majority of the population in a given country, and even then their participation in political affairs is bound to be limited in scope unless they obtain a similar majority in some other countries as well.

(19 November 199)

The bahá’ís must remain non-partisan in all political affairs. in the distant future, however, when the majority of a country have become bahá’ís then it will lead to the establishment of a b ahá’í State.

(19 April 191)

A proper understanding of all the above passages, and of their implications, requires an acceptance of two fundamental principles for the exegesis of bahá’í Texts. The first, which derives from the covenant, is the principle that the writings of ‘Abdu’l-b ahá and the guardian are thoroughly imbued with the spirit of the revelation of bahá’u’lláh and intimately linked with the Teachings of bahá’u’lláh himself. This principle is clearly expounded in two paragraphs from a letter written on behalf of the guardian to an individual believer on 19 m arch 1946:

whatever the master has said is based on the teachings of bahá’u’lláh. he was the perfect interpreter, had lived with him all his life; therefore what he says has the same standing, even if a text of bahá’u’lláh is not available. . . .201.7a

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1we must take the teachings as a great, balanced whole, not seek out and oppose to each other two strong statements that have different meanings; somewhere in between, there are links uniting the two. That is what makes our faith so flexible and well balanced. for instance there are calamities for testing and for punishment—there are also accidents, plain cause and effect!

bahá'u'lláh has given us a revelation designed to raise mankind to heights never before attained. it is little wonder that the minds of individual believers, no matter how perceptive, have difficulty in comprehending its range. it is the words of 'Abdu'l-b ahá and the guardian which elucidate this vast revelation and make clear the manner in which different statements relate to one another and what is implied by the revealed word. without the bright light of the covenant, this faith, like all those before it, would be torn to pieces by the conflicting opinions of scholars applying limited human reasoning to divinely revealed truths.

The second fundamental principle which enables us to understand the pattern towards which bahá'u'lláh wishes human society to evolve is the principle of organic growth which requires that detailed developments, and the understanding of detailed developments, become available only with the passage of time and with the help of the guidance given by that central

Authority in the cause to whom all must turn. in this regard one can use the simile of a tree. if a farmer plants a tree, he cannot state at that moment what its exact height will be, the number of its branches or the exact time of its blossoming. he can, however, give a general impression of its size and pattern of growth and can state with confidence which fruit it will bear.

The same is true of the evolution of the world order of bahá'u'lláh. for example, we find the following illuminating explanation in a letter written by Shoghi e ffendi to the b ahá'ís in America on 23 f ebruary 1924:

And as we make an effort to demonstrate that love to the world may we also clear our minds of any lingering trace of unhappy mis-understandings that might obscure our clear conception of the exact

purpose and methods of this new world order, so challenging and complex, yet so consummate and wise. we are called upon by our

beloved master in his will and Testament not only to adopt it unservedly, but to unveil its merit to all the world. To attempt to estimate 201.9b

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m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

2 its full value, and grasp its exact significance after so short a time since

its inception would be premature and presumptuous on our part. we

must trust to time, and the guidance of god's universal house of

justice, to obtain a clearer and fuller understanding of its provisions

and implications. but one word of warning must be uttered in this

connection. let us be on our guard lest we measure too strictly the

divine plan with the standard of men. i am not prepared to state that

it agrees in principle or in method with the prevailing notions now uppermost in men's minds, nor that it should conform with those imperfect, precarious, and expedient measures feverishly resorted to

by agitated humanity. Are we to doubt that the ways of god are not

necessarily the ways of man? is not faith but another word for implicit

obedience, wholehearted allegiance, uncompromising adherence to that which we believe is the revealed and express will of god, however

perplexing it might first appear, however at variance with the shadowy

views, the impotent doctrines, the crude theories, the idle imaginings, the fashionable conceptions of a transient and troublous age? if we are

to falter or hesitate, if our love for him should fail to direct us and

keep us within his path, if we desert divine and emphatic principles,

what hope can we any more cherish for healing the ills and sicknesses of this world?

function it is to lay more definitely the broad lines that must guide the future activities and administration of the movement, it is clearly our

duty to strive to obtain as clear a view as possible of the manner in which to conduct the affairs of the cause, and then arise with single-

mindedness and determination to adopt and maintain it in all our activities and labors.

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At this time we have the benefit of many subsequent interpretations

by Shoghi effendi and also the initial guidance of the universal house of justice, which will continue to elucidate aspects of this mighty system as it unfolds. in striving to attain a “clearer and fuller understanding” of the world order of bahá’u’lláh, we need to contemplate the operation of the bahá’í principles of governance and social responsibility as they persist

201-4. bA, p. 62.201.11b

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through changing sets of conditions, from the present time when the bahá’í community constitutes a small number of people living in a variety of overwhelmingly non-bahá’í societies, to the far different situation in future centuries when the bahá’ís are becoming, and eventually have become, the vast majority of the people.

The Administrative order is certainly the nucleus and pattern of the world order of bahá’u’lláh, but it is in embryonic form, and must undergo major evolutionary developments in the course of time. certain passages in the writings on this subject establish matters of principle, certain ones describe the ultimate goal of the most great peace, and certain of them relate to stages of development on the way to the attainment of that goal. for example, in this familiar passage in his will and Testament, ‘Abdu’l-bahá states:

This house of justice enacteth the laws and the government enforceth them. The legislative body must reinforce the executive, the executive must aid and assist the legislative body so that through the close union and harmony of these two forces, the foundation of fairness and justice may become firm and strong, that all the regions of the world may become even as paradise itself.

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in response to a question about the “government” in the above passage, Shoghi effendi’s secretary wrote on his behalf, on 18 April 1941, the following clarification:

by “government” . . . is meant the executive body which will enforce the laws when the bahá’í faith has reached the point when it is recognized and accepted entirely by any particular nation.201-6

The same relationship between legislature and executive is expressed in the well-known passage in “The unfoldment of world civilization,” showing how one principle is applied over successive periods.

201-5. w T, pp. 14–15.

201-6. lg, no. 1604.201.13

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A world executive, backed by an international force, will carry out the decisions arrived at, and apply the laws enacted by, this world legislature, and will safeguard the organic unity of the whole commonwealth.201-7

in relation to other international institutions, the guardian has given the following guidance:

Touching the point raised in the Secretary’s letter regarding the nature and scope of the universal court of Arbitration, this and other similar matters will have to be explained and elucidated by the universal house of justice, to which, according to the master’s explicit instructions, all important fundamental questions must be referred.201-8

in his letter to the National Spiritual Assembly of the bahá’ís of the united States and canada written on 27 february 1929, Shoghi effendi stated:

Not only will the present-day Spiritual Assemblies be styled differently in future, but they will be enabled also to add to their present functions those powers, duties, and prerogatives necessitated by the

recognition of the faith of bahá’u’lláh, not merely as one of the recognized religious systems of the world, but as the State religion of an independent and Sovereign power. And as the bahá’í faith permeates the masses of the peoples of east and west, and its truth is embraced by the majority of the peoples of a number of the Sovereign States of its power, and exercise as the supreme organ of the bahá’í common-

wealth all the rights, the duties and responsibilities incumbent upon the world's future superstate.

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complementing these words are the guardian's repeated and forceful requirement that bahá'ís strictly abstain from involvement in politics.

This requirement has far-reaching implications for the method by which

201-7 . wob, p. 203.

201-8. bA, p. 47 .201-9. wob, pp. 6–7 .201.15a

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5bahá'u'lláh's Administrative order will evolve into his world order. we can consider, for example, the well-known passage in his letter of 21 march 1932 to the bahá'ís in the u nited States and canada:

let them refrain from associating themselves, whether by word or by deed, with the political pursuits of their respective nations, with the policies of their governments and the schemes and programs of parties and factions. . . . let them affirm their unyielding determination to stand, firmly and unreservedly, for the way of bahá'u'lláh, to avoid the entanglements and bickerings inseparable from the pursuits of the politician, and to become worthy agencies of that divine polity which incarnates god's immutable purpose for all men. . . .

. . . let them beware lest, in their eagerness to further the aims of their beloved cause, they should be led unwittingly to bargain with their faith, to compromise with their essential principles, or to sacrifice, in return for any material advantage which their institutions may derive, the integrity of their spiritual ideals.201-10

As one studies these words, one begins to understand the processes at work in the gradual unfoldment and establishment of the bahá'í System.

clearly the establishment of the kingdom of god on earth is a "political" enterprise, and the Teachings of the faith are filled with "political"

principles—using the word in the sense of the science of government and of the organization of human society. At the same time the bahá'í world

community repeatedly and emphatically denies being a “political” organization, and bahá'ís are required, on pain of deprivation of their administrative

rights, to refrain from becoming involved in “political” matters and from taking sides in “political” disputes. In other words, the bahá'ís are following

a completely different path from that usually followed by those who wish to reform society. They eschew political methods towards the achievement of their aims, and concentrate on revitalizing the hearts, minds and behavior

of people and on presenting a working model as evidence of the reality and practicality of the way of life they propound.

The bahá'í Administrative order is the “nucleus and pattern”

201-11 of the

divinely intended future political system of the world, and undoubtedly

201-10. *wob*, pp. 64–65.

201-11. *cf* , p. 5.201.18a

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6non-bahá'í governments will benefit from learning how this system works

and from adopting its procedures and principles in overcoming the prob-

lems they face. Nevertheless, this Administration is primarily the framework

and structure designed to be a channel for the flow of the spirit of the cause

and for the application of its Teachings. As the guardian wrote:

it is surely for those to whose hands so priceless a heritage has been

committed to prayerfully watch lest the tool should supersede the faith itself, lest undue concern for the minute details arising from

the administration of the cause obscure the vision of its promoters,

lest partiality, ambition, and worldliness tend in the course of time to becloud the radiance, stain the purity, and impair the effectiveness of the faith of bahá'u'lláh.

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The gradual process of the evolution of the bahá'í Administrative order

into the world order of bahá'u'lláh has been described by Shoghi Effendi

in many of his writings, as in the following excerpt from his letter of 30 April 1953 to the All-America Intercontinental Teaching conference:

This present crusade, on the threshold of which we now stand, will, moreover, by virtue of the dynamic forces it will release and its wide repercussions over the entire surface of the globe, contribute effectually to the acceleration of yet another process of tremendous significance which will carry the steadily evolving faith of bahá'u'lláh through its present stages of obscurity, of repression, of emancipation and of recognition—stages one or another of which bahá'í national communities in various parts of the world now find themselves—to the stage of establishment, the stage at which the faith of bahá'u'lláh will be recognized by the civil authorities as the State religion, similar to that which christianity entered in the years following the death of the emperor constantine, a stage which must later be followed by the emergence of the bahá'í state itself, functioning, in all religious and civil matters, in strict accordance with the laws and ordinances of the kitáb-i-Aqdas, the most holy, the mother-book of the bahá'í revelation, a stage which, in the fullness of time, will culminate in the

201-12. wob, p. 10.201.20a

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7establishment of the world bahá'í commonwealth, functioning in the plenitude of its powers, and which will signalize the long-awaited advent of the christ-promised kingdom of god on earth—the kingdom of bahá'u'lláh—mirroring however faintly upon this humble handful of dust the glories of the Abhá kingdom.201-13

in answer to those who raise objections to this vision of a worldwide commonwealth inspired by a divine revelation, fearing for the freedom of minority groups or of the individual under such a system, we can explain the bahá'í principle of upholding the rights of minorities and fostering their interests. we can also point to the fact that no person is ever compelled to accept the faith of bahá'u'lláh and moreover, unlike the situation in certain other religions, each person has complete freedom to withdraw from the faith if he decides that he no longer believes in its founder or accepts his

Teachings. in light of these facts alone it is evident that the growth of the bahá'í communities to the size where a non-b ahá'í state would adopt the

faith as the State religion, let alone to the point at which the State would accept the law of god as its own law and the National house of justice as its legislature, must be a supremely voluntary and democratic process.

National Spiritual Assembly of the bahá'ís of the United States:

it is not our purpose to impose bahá'í teachings upon others by persuading the powers that be to enact laws enforcing bahá'í principles, nor to join movements which have such legislation as their aim. The guidance that bahá'í institutions offer to mankind does not comprise a series of specific answers to current problems, but rather the illumination of an entirely new way of life. without this way of life the problems are insoluble; with it they will either not arise or, if they arise, can be resolved.

Two quotations from the writings of the guardian bear particularly on these principles of the rights and prerogatives of minorities and of individuals. in The Advent of Divine Justice is a passage which is of fundamental significance for bahá'í constitutional law:

201-13. mbw , p. 155.201.22

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8unlike the nations and peoples of the earth, be they of the east or of the west, democratic or authoritarian, communist or capitalist, whether belonging to the old world or the New, who either ignore, trample upon, or extirpate, the racial, religious, or political minorities within the sphere of their jurisdiction, every organized community enlisted under the banner of bahá'u'lláh should feel it to be its first

and inescapable obligation to nurture, encourage, and safeguard every minority belonging to any faith, race, class, or nation within it.

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As for the protection of the rights of individuals, there is the following translation of a forceful passage which appears in a letter from Shoghi effendi to the bahá'ís of iran, written in july 1925, in relation to a situation involving a covenant-breaker:

. . . the mere fact of disaffection, estrangement, or recantation of belief, can in no wise detract from, or otherwise impinge upon, the legitimate civil rights of individuals in a free society, be it to the most insignificant degree. were the friends to follow other than this course, it would be tantamount to a reversion on their part, in this century of radiance and light, to the ways and standards of a former age: they would reignite in men's breasts the fire of bigotry and blind fanati-cism, cut themselves off from the glorious bestowals of this promised day of god, and impede the full flow of divine assistance in this wondrous age.

All bahá'ís, and especially those who make a profound study of the cause, need to grasp the differences between the bahá'í concepts of governance and those of the past, and to abstain from measuring bahá'í institutions and methods against the faulty man-made institutions and methods hitherto current in the world. The guardian graphically stressed these differences in his letter of 8 february 1934, known as "The dispensation of bahá'u'lláh":

The bahá'í commonwealth of the future, of which this vast Administrative order is the sole framework, is, both in theory and practice, not only unique in the entire history of political institutions,

201-14. Adj, ¶52.201.24a

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9but can find no parallel in the annals of any of the world's recognized religious systems. No form of democratic government; no system of autocracy or of dictatorship, whether monarchical or republican; no intermediary scheme of a purely aristocratic order; nor even any of the recognized types of theocracy, whether it be the hebrew commonwealth, or the various christian ecclesiastical organizations, or the imamate or the caliphate in islam—none of these can be identified or be said to conform with the Administrative order which the master-hand of its perfect Architect has fashioned.

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Among the many complementary Teachings in the faith which resolve the dilemmas of past societies are those of the unity of mankind on the one hand, and loyalty to the covenant on the other. As already mentioned, no one in this dispensation is compelled to be a bahá'í, and the division of humankind into the "clean" and the "unclean," the "faithful" and the "infidels," is abolished. At the same time, anyone who does choose to be a bahá'í accepts the covenant of bahá'u'lláh and, while free expression of opinion within the bahá'í community is encouraged, this cannot ever be permitted to degenerate to the level of undermining the covenant, for this would vitiate the very purpose of the revelation itself.

bahá'í Administrative order unfolds, will be to ensure that it evolves in consonance with the spirit of the bahá'í revelation. while many beneficial aspects of human society at large can be safely incorporated into bahá'í Administration, the house of justice will guard against the corrupting influence of those non-bahá'í political and social concepts and practices which are not in harmony with the divine standard.

The house of justice appreciates your concern about such a fundamental issue, and asks us to assure you of its prayers in the holy Shrines for the confirmation of your services to the cause of god.

with loving bahá'í greetings,

Department of the secretariat

201-15. wob, p. 152.201.27

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Messages from The Universal House of Justice

0202

Ruling of Supreme Court in India Citing the Bahá'í

Teachings as a Guideline for Resolving Disputes

[signed: The Universal House of Justice]